UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. Robert F Kennedy, JR, Debra Ward Lund, Kathy Dill, Clinton Pope, Candace Lee, Naomi Hixson, Jason White, Brandi Benjamin, Endreya McCabe, Todd Pingel, Dora Birdshead, Ty Reidhead, Governing Body of the Phoenix Indian Medical Center, Defendants.	Case No.: CV-25-03367-PHX-SMB **FIRST AMENDED COMPLAINT** **(Jury Trial Demanded)~~COMPLAINT~~**

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INTRODUCTION

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Plaintiff Kevin D. Turnage, proceeding pro se, brings this ~~Complaint~~ First Amended Complaint under:

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Title VII of the Civil Rights Act

ADEA

ADA

FMLA

WPA

~~Fifth Amendment of the United States Constitution~~

~~18 U.S.C. §§ 1001 and 1519~~

Civil Service Reform Act (CSRA)

This amendment is filed pursuant to Fed. R. Civ. P. 15(a) and corrects a clerical count numbering issue, withdraws improper claims, and clarifies statutory bases.

JURISDICTION AND VENUE

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This action arises under (a) Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e-2, -3; (b) the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621-634; (c) the Americans with Disabilities Act, 42 U.S.C. §§ 12101-12213; (d) the Family and Medical Leave Act, 29 U.S.C. §§ 2601-2617; (e) the Whistleblower Protection Act, 5 U.S.C. §§ 2302(b)(8)-(9); and (f) the Civil Service Reform Act, 5 U.S.C. §§ 7511-7515.~~This action arises under (a) Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e-2, -3; (b) the Age~~

~~Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621-634; (c) the Americans with Disabilities Act, 42 U.S.C. §§ 12101-12213; (d) the Family and Medical Leave Act, 29 U.S.C. §§ 2601-2617; (e) the Whistleblower Protection Act, 5 U.S.C. §§ 2302(b)(8)-(9); (f) the Fifth Amendment to the United States Constitution; (g) 28 U.S.C. § 1346 (Bivens); (h) 18 U.S.C. §§ 1001 and 1519; and (i) the Civil Service Reform Act, 5 U.S.C. §§ 7511-7515.~~

Plaintiff clarifies that although the original complaint referenced claims under the Fifth Amendment, Bivens, and 18 U.S.C. §§ 1001 and 1519, these are withdrawn. No Bivens or constitutional tort claims are asserted, and the criminal statutes do not provide a private cause of action.~~The conduct alleged also implicates the doctrine of Bivens (28 U.S.C. § 1346). However, because the Civil Service Reform Act provides the exclusive remedial scheme for federal-employee claims, the plaintiff is not asserting a Bivens claim as a cause of action.~~

This is a "mixed case" within the meaning of 5 U.S.C. § 7702(a), involving both appealable adverse personnel actions under the Civil Service Reform Act and claims of unlawful discrimination and retaliation under federal civil rights statutes, including Title VII, the ADEA, and the ADA.

Because Plaintiff alleges that adverse personnel actions were taken against him in whole or in part due to unlawful discrimination and retaliation, jurisdiction lies in this Court pursuant to 28 U.S.C. § 1331 and 5 U.S.C. § 7703(b)(2). See *Kloeckner v. Solis*, 568 U.S. 41 (2012).

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The Court also has subject-matter jurisdiction under 28 U.S.C. § 1343(a)(4) because this action seeks redress for violations of federal employment discrimination laws

~~The Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 (federal question) and 1343(a)(4) (employment discrimination).~~

Venue is proper in this district pursuant to 28 U.S.C. § 1391(e) because a substantial portion of the events giving rise to the claims occurred in Arizona and the defendants are located herein.

Plaintiff has exhausted administrative remedies. He filed a formal EEOC charge on April 13, 2023, received a Final Agency Decision on July 11, 2024, and appealed to the EEOC on July 12, 2024 (EEOC Appeal No. 2024004239). The EEOC issued its decision on September 2, 2025. This Complaint is filed within 90 days of receipt of that decision.

PARTIES

Plaintiff Kevin D. Turnage is a United States citizen, resident of Gilbert, Arizona, and at all relevant times was a supervisory clinic nurse employed by the Indian Health Service (IHS), a component of the Department of Health and Human Services (HHS), working at the Phoenix Indian Medical Center (PIMC).

Defendants Robert F. Kennedy Jr. is the Secretary of HHS and is sued in his official capacity. ~~The United States, through HHS/IHS and the individual federal officials~~

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~~named herein, are also defendants~~. Debra Ward Lund, Kathy Dill, Clinton Pope, Candace Lee, Naomi Hixson, Jason White, Brandi Benjamin, Endreya McCabe, Todd Pingel, Dora Birdshead, Ty Reidhead, Governing Body of the Phoenix Indian Medical Center in their official capacities. Defendants include the Department of Health and Human Services and its officials acting in their official capacities.

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FACTUAL BACKGROUND

Plaintiff is a highly qualified nurse who has consistently received favorable performance evaluations.

Beginning December 2022, Plaintiff engaged in protected activity by (i) filing internal EEO complaints alleging discrimination and hostile conduct, (ii) submitting whistleblower disclosures to the Office of Special Counsel, and (iii) requesting and obtaining FMLA leave for a serious medical condition.

In retaliation, Defendant's management (including Endreya McCabe, Dora Birdshead, Candace Lee, Debra Ward-Lund, and Jason White) took a series of adverse actions:

Failure to Process FMLA Paperwork – the agency deliberately delayed approval of Plaintiff's FMLA request for approximately two months, despite timely submission.

Unfair Performance Rating – on March 2, 2023, Plaintiff received a low Performance Management Appraisal Plan score that was subsequently

"adjusted" but remained below his actual performance.

Public "Perp-Walk" and Administrative Leave – on March 21, 2023, Plaintiff was placed on administrative leave and escorted from the facility on false allegations of threatening another employee. Access to all agency systems was revoked.

Retaliatory Detail – on April 15, 2023, Plaintiff was reassigned to an undesirable "detail" in the Aztec Building, effectively removing him from his supervisory position.

Denial of Access to Work Facilities – during the detail, Plaintiff was denied keys to his office and restroom, further isolating him.

The Agency later admitted that the "threat" allegation could not be corroborated and took no disciplinary action against the accuser.

Plaintiff repeatedly sought relief from his administrative leave, requesting a hearing and timely reinstatement, but was denied any notice of hearing or opportunity to be heard.

~~Defendant also fabricated evidence and pressured a witness to sign a false statement, constituting violations of 18 U.S.C. §§ 1001 and 1519~~ Defendants fabricated evidence and pressured a witness to sign a false statement. The conduct is incorporated in support of Plaintiff's WPA and CSRA ~~.~~claims.

CAUSES OF ACTION

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COUNT I – DISCRIMINATION (DISPARATE-TREATMENT) AND HOSTILE WORK ENVIRONMENT UNDER TITLE VII OF THE CIVIL RIGHTS ACT OF 1964 (42 U.S.C. §§ 2000e-2, -3)

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Plaintiff realleges and incorporates by reference all preceding paragraphs.

Plaintiff is a member of protected classes based on race (Caucasian), sex (male), religion (Christian), and national origin.

Defendant, through its agents, intentionally treated Plaintiff less favorably because of these protected characteristics, as evidenced by the low performance rating, the hostile "perp-walk," and the punitive detail.

Defendant also created a hostile work environment by subjecting Plaintiff to humiliating, degrading, and intimidating conduct that was severe and pervasive enough to alter the terms and conditions of his employment.

The elements of a Title VII disparate-treatment claim are satisfied: (1) Plaintiff is a member of a protected class; (2) Defendant intentionally discriminated; (3) Plaintiff suffered an adverse employment action; and (4) the discrimination was a substantial factor in the adverse action.

The elements of a hostile-work-environment claim are satisfied: (1) Plaintiff engaged in protected activity; (2) Defendant's conduct was severe or pervasive; (3) Defendant was aware (or should have been aware) of the harassment; and (4) the conduct created an abusive working environment.

WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.

COUNT II – RETALIATION FOR PROTECTED EEO ACTIVITY UNDER TITLE VII (42 U.S.C. §§ 2000e-3(a))

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Plaintiff realleges and incorporates by reference all preceding paragraphs.

Plaintiff engaged in protected activity by (i) filing EEO complaints, (ii) reporting sexual harassment, (iii) making whistleblower disclosures, and (iv) requesting FMLA leave.

Defendant was aware of Plaintiff's protected activity.

Shortly thereafter, Defendant took materially adverse employment actions: the delayed FMLA approval, the low performance rating, the administrative "perp-walk," the denial of system access, and the retaliatory detail.

There is a causal connection between Plaintiff's protected activity and Defendant's adverse actions, demonstrated by the close temporal proximity and the defendants' own statements that the actions were "retributive."

The elements of a Title VII retaliation claim are satisfied: (1) protected activity; (2) knowledge; (3) adverse action; (4) causal link.

WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.

COUNT III – AGE DISCRIMINATION (ADEA) (29 U.S.C. §§ 621-634)

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Plaintiff realleges and incorporates by reference all preceding paragraphs.

Plaintiff was 49 years old at all relevant times and therefore a covered employee under the ADEA.

Defendant treated Plaintiff less favorably because of his age, as shown by the low performance rating and the retaliatory detail, which are inconsistent with the agency's treatment of younger employees.

The elements of an ADEA disparate-treatment claim are satisfied: (1) Plaintiff is a member of the protected age class; (2) Defendant intentionally treated Plaintiff differently because of age; (3) Plaintiff suffered an adverse employment action; and (4) the age-based discrimination was a substantial factor.

WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.

COUNT IV – DISABILITY DISCRIMINATION UNDER THE AMERICANS WITH DISABILITIES ACT (ADA) (42 U.S.C. §§ 12101-12213)

Plaintiff realleges and incorporates by reference all preceding paragraphs.

Plaintiff suffers from a serious medical condition that qualifies as a disability under the ADA.

Defendant failed to provide reasonable accommodation for Plaintiff's disability, notably by refusing to process his FMLA/medical leave in a timely manner and by placing him on administrative leave without providing the accommodations required by his condition.

The elements of an ADA discrimination claim are satisfied: (1) Plaintiff has a disability; (2) Plaintiff is a qualified individual; (3) Defendant failed to provide

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reasonable accommodation; (4) Plaintiff suffered an adverse employment action as a result.

WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.

COUNT V – INTERFERENCE WITH AND RETALIATION FOR FAMILY AND MEDICAL LEAVE ACT (FMLA) RIGHTS (29 U.S.C. §§ 2601-2617)

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Plaintiff realleges and incorporates by reference all preceding paragraphs.

Plaintiff is entitled to FMLA leave for a serious health condition.

Defendant interfered with Plaintiff's right to FMLA leave by (a) deliberately delaying the processing of his FMLA paperwork for two months, (b) denying him timely reinstatement after leave, and (c) placing him on administrative leave without proper notice.

Defendant further retaliated against Plaintiff for exercising his FMLA rights by issuing the low performance rating, the "perp-walk," and the retaliatory detail.

The elements of an FMLA interference claim are satisfied: (1) eligibility and timely notice; (2) employer's interference with the employee's right to leave; (3) resulting harm.

The elements of an FMLA retaliation claim are satisfied: (1) protected activity (taking or requesting FMLA leave); (2) adverse employment action; (3) causal connection.

WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.

COUNT VI – WHISTLEBLOWER RETALIATION UNDER THE WHISTLEBLOWER PROTECTION ACT (5 U.S.C. §§ 2302(b)(8)-(9))

Plaintiff realleges and incorporates by reference all preceding paragraphs.

Plaintiff made a protected disclosure to the Office of Special Counsel concerning (i) alleged mismanagement, (ii) threats to patient safety, and (iii) unlawful retaliation against fellow employees.

Defendant knew of Plaintiff's disclosures.

Shortly thereafter, Defendant subjected Plaintiff to the same series of adverse actions described above (administrative leave, hostile detail, denial of access).

The WPA prohibits retaliation against an employee for (b)(8) making a protected disclosure and (b)(9) refusing to comply with an unlawful order. Defendant's conduct falls squarely within those prohibited practices.

The elements of a WPA retaliation claim are satisfied: (1) protected disclosure or refusal; (2) knowledge by the employer; (3) adverse employment action; (4) causal link.

WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.

~~COUNT VII – VIOLATION OF THE FIFTH AMENDMENT DUE-PROCESS RIGHTS~~

~~Plaintiff realleges and incorporates by reference all preceding paragraphs.~~

~~Plaintiff was placed on indefinite investigative (non-duty) leave without any written notice of the charges, without an opportunity to respond, and without a hearing, in violation of his liberty and property interests protected by the Fifth Amendment.~~

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~~The agency's action deprived Plaintiff of his employment rights without the procedural safeguards required by due process.~~

~~The elements of a Fifth Amendment due process claim are satisfied: (1) a protected interest (employment); (2) deprivation of that interest; (3) lack of notice and hearing; and (4) causation.~~

~~**WHEREFOR**, Plaintiff requests relief as set forth in the Prayer for Relief.~~

~~COUNT IX — FALSE STATEMENTS AND FABRICATION OF EVIDENCE (18 U.S.C. §§ 1001 AND 1519)~~

~~Plaintiff realleges and incorporates by reference all preceding paragraphs.~~

~~Defendant, or agents acting on its behalf, knowingly made false statements to federal officials and fabricated evidence by pressuring a witness to sign a false statement, in violation of 18 U.S.C. § 1001.~~

~~Defendant also destroyed, altered, or falsified records relevant to the investigation (e.g., performance records, FMLA paperwork) in violation of 18 U.S.C. § 1519.~~

~~The elements of a § 1001 claim are: (1) a materially false statement; (2) knowledge of its falsity; (3) intent to deceive a federal officer; and (4) the statement was made in a matter within the jurisdiction of the United States.~~

~~The elements of a § 1519 claim are: (1) destruction, alteration, or falsification of a record; (2) knowledge of the wrongdoing; (3) intent to impede a federal investigation; and (4) the conduct occurs in a federal investigation.~~

~~**WHEREFOR**, Plaintiff requests relief as set forth in the Prayer for Relief.~~

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~~COUNT X~~COUNT IX – CIVIL SERVICE REFORM ACT RETALIATION AND IMPROPER PERSONNEL ACTION (5 U.S.C. §§ 7511-7515)

Plaintiff realleges and incorporates by reference all preceding paragraphs.

Under the CSRA, a federal employee is protected from retaliation for whistleblowing, and any personnel action must be based on a lawful, documented reason.

Defendant's actions—administrative leave, adverse performance rating, and retaliatory detail—constitute an "adverse personnel action" that was taken in retaliation for Plaintiff's protected disclosures, in violation of 5 U.S.C. § 7513.

The CSRA also requires that any adverse action be supported by a pre-clearance determination; none was made.

The elements of a CSRA retaliation claim are: (1) protected activity; (2) adverse personnel action; (3) causation; and (4) violation of the statutory prohibition.

WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

Declare that Defendant's conduct violated Plaintiff's rights under Title VII, the ADEA, the ADA, the FMLA, the WPA, ~~the Fifth Amendment, 18 U.S.C. §§ 1001 and 1519,~~ and the Civil Service Reform Act;

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Order reinstatement to Plaintiff's former position with full back pay, front pay, and all accrued benefits, together with pre- and post-judgment interest;

Award compensatory damages for past and future pecuniary losses, emotional distress, humiliation, mental anguish, and loss of enjoyment of life;

Award punitive damages where justified under the statutes;

Order injunctive relief enjoining Defendant from any further retaliation, discrimination, or interference with Plaintiff's statutory rights;

Award reasonable attorney's fees and costs pursuant to 28 U.S.C. §§ 2412 and 2413, and any other statutory fee provisions;

Grant such other and further relief as the Court deems just and proper, including a trial by jury on all issues so triable.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

Dated: ~~September 15, 2025~~December 18, 2025

Respectfully submitted,

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